NDA

CONFIDENTIALITY AGREEMENT

The Confidentiality Agreement is between

ChallChamp ApS

CVR 43982109

c/o Sander Bastrup-Birk

Lindenovsgade 5, 3. sal th.

2100 København Ø

(hereinafter Transferor)

and

Marcus Hauen-Limkilde

Høyrups Allé 1, 4. sal th

2900 Hellerup

(hereinafter Recipient)

(hereinafter individually also referred to as “Party” and collectively “the Parties”)

1. The Purpose

The purpose of the Parties entering into this Confidentially Agreement is to protect ChallChamp's business ideas and marketing-oriented challenge initiatives from unwanted disclosure of information about ChallChamp's ways of building and creating these enabling challenge forums where the participants' efforts are to play and possibly win chances to win in a sponsored drawing, while at the same time the sponsors and their products/services are exposed to all the visits to ChallChamp.com.

2. Duty of confidentiality

"Confidential Information" means all non-publicly available information that belongs to or otherwise concerns the Transferor and that the Transferor considers to be confidential and/or trade secrets, including - but not limited to - any type of business, commercial or technical information, which is passed on by the Transferor to the Recipient in connection with the Purpose, regardless of the medium on which the information in question is passed on.

Confidential Information exchanged between the Parties pursuant to this Confidentiality Agreement may only be used by the Recipient in connection with the Purpose.

The Recipient undertakes to keep the Confidential Information secure and not to disclose it to any third party and to ensure that Confidential Information is not distributed, forwarded, or communicated to others in any way.

Confidential Information may therefore not be passed on by the Recipient to a third party without the prior written consent of the Transferor. Regardless of whether the Transferor has given consent, disclosure may only take place to a third party if the third party in question is subject to confidentiality obligations similar to those set out in this Confidentiality Agreement.

3. Exceptions to the Duty of confidentiality

In this Confidentiality Agreement, information is not considered Confidential Information if the information had already:

a) had already become known to the public at the time of the transfer, or subsequently becomes known to the public otherwise than by breach of this Confidentiality Agreement;
b) had already become in the Recepients's rightful possession before the Transferor's disclosure and which was not subject to any obligation of confidentiality before it was disclosed to the Recepient by the Transferor
c) The transferor has consented in writing to the information being shared.

Confidential Information must be disclosed by the Recipient if this is required or required by law or regulation or as a result of a valid decision by a court or public authority. Such mandated disclosure does not, by itself, change the nature of the disclosed information as being Confidential Information under the

provisions of this Confidentially Agreement. If such disclosure takes place, the Recipient must immediately inform the Transferor thereof. Disclosure must be limited to what may be required by law, court order or authority decision.

4. The temporal extent of the duty of confidentiality

This Confidentiality Agreement comes into force on 3 August 2023. The undertakings will continue in force for 5 years from the date of this Confidentiality Agreement.

5. Obligation to return and destroy Confidential Information

Confidential Information that has been passed on a physical medium or electronically in accordance with the Confidentiality Agreement must, at the Transferor's request - and at his free choice - either be returned to the Transferor or immediately destroyed by the Recipient. This applies similarly to copies thereof.

6. Violations of confidentiality

Breach of this Confidentiality Agreement, including breach of the duty of confidentiality in point 2, is subject to the general principles of Danish law.

Payment of compensation does not give the Recipient the right to continue a violation of the obligation under this Confidentiality Agreement.

The Transferor has the right to place a temporary ban on the Recipient regarding actions or omissions that the Transferor considers to be in violation of the obligations under the Confidentiality Agreement.

7. Disputes, Governing Law and Jurisdiction

Any dispute that arises from or is related to the Confidentiality Agreement shall be governed by and construed in accordance with the laws of Denmark both with regard to material and procedural issues, except for the Danish choice of law rules.

If a discrepancy arises between the Parties in connection with this confidentiality statement, the Parties shall, with a positive, cooperative and responsible attitude, initiate negotiations with a view to resolving the dispute.

If it is not possible to resolve the dispute through negotiations, each party is entitled to bring the matter before the Maritime and Commercial Court in Copenhagen as the court of first instance.

If the Maritime and Commercial Court does not have substantive competence to deal with the case, the case or the claim is referred for decision to the district court competent pursuant to the Administration of Justice Act.

8. Signature

Date: 3. August 2023

Location: Høyrups Allé 1, 4. sal th - 2900 Hellerup

Recipient: Marcus Hauen-Limkilde

Marcus Hauen-Limkilde

Marcus Hauen-Limkilde